FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Queens

WILMINGTON SAVINGS FUND SOCIETY, FSB, D/B/A CHRISTIANA TRUST, NOT INDIVIDUALLY BUT AS TRUSTEE FOR PRETIUM MORTGAGE ACQUISITION TRUST

Plaintiff,

-against-

ROBERT NAGGIE AS ADMINISTRATOR AND AS HEIR TO THE ESTATE OF RANDAL NAGGIE, NATHYLE SUDLOW NAGGIE AS HEIR TO THE ESTATE OF RANDAL NAGGIE, LINCOLN NAGGIE AS HEIR TO THE ESTATE OF RANDAL NAGGIE, C.N. (FULL NAME REDACTED AS DEFENDANT IS A MINOR) AS HEIR TO THE ESTATE OF RANDAL NAGGIE, PEOPLE OF THE STATE OF NEW YORK, UNITED STATES OF AMERICA ACTING THROUGH THE IRS, MANUFACTURERS AND TRADERS TRUST COMPANY, CONSTANCE WHELAN, SHIRLEY WHELAN, MARY WHELAN, JOHN WHELAN, GEORGE WHELAN

Defendant.

Index No. 704325/2018

MORTGAGED PROPERTY:
120-11 218TH STREET
CAMBRIA HEIGHTS, NY 11411

COUNTY: Queens
SBL #: Block 12801, Lot 23
Sale Date: January 23,2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 161,638.81
2. Adjusted Judgment Amount (Upset Price): $ 217,128.99
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 500,000
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ _____
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 550.00

Referee Name: Frances Y. Ruiz, Esq. Telephone: 718-505-3400
Address: 32-72 Steinway Street, Suite 502, Astoria, NY 11103-4184
Email: fran@nylaw365.com Signature/Date: 1/23/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Gross Polowy LLC
Address: 1775 Wehrle Drive, Suite 100, Williamsville, NY 14221
Telephone: (716) 204-1700
Email: info@grosspolowy.com
Signature/Date: 1/23/26

C. To Be Completed by Purchaser

Name: 120-11 218th St Inc
Address: 185-08 Union Tpke rm 101 Fresh Meadows NY 11366
Telephone:
Email:
Signature/ Date: 1/23/26

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19